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County: los-angeles

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Case Number: 25STCV33104 Hearing Date: July 21, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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JANE DOE,

Plaintiff,

vs.

GOLDRICH & KEST INDUSTRIES, LLC, et al.

Defendants.

Case No.:

25STCV33104

Hearing Date:

July 21, 2026

ORDER GRANTING Application FOR DETERMINATION OF GOOD FAITH SETTLEMENT

I. BACKGROUND

During Plaintiff Jane Doe's ("Doe") tenancy, Doe's landlords, Defendants Goldrich & Kest Industries, LLC ("GK") and Bunker Hill Apartments, LLC ("BH") allegedly harassed, distressed, and violated the warranty of habitability with Doe. Landlord Defendants's attorney, Defendant Kimball, Tirey & St. John LLP ("KTS") allegedly also harassed and denied Doe her legal rights. Landlord defendants hired Defendant Envirocheck, Inc. ("EC") to test Doe's apartment. EC found no trace of mold, despite Doe alleging otherwise. Doe sues Defendants for thirty-three causes of action.

On May 13, 2026, EC filed the instant application for determination of good faith settlement. No party has opposed.

II. LEGAL STANDARD

California Code of Civil Procedure section 887.6, subdivision (a)(2)1, states that "[i]n the alternative, a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. The notice by a nonsettling party shall be given in the manner provided in subdivision (b) of Section 1005. However, this paragraph shall not apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement." The statute further clarifies that the party asserting the lack of good faith shall have the burden of proof on that issue.

Section 877 provides: "[w]here a release, dismissal with or without prejudice, or a covenant not to sue or not to enforce judgment is given in good faith before verdict or judgment to one or more of a number of tortfeasors claimed to be liable for the same tort, or to one or more other co-obligors mutually subject to contribution rights, it shall have the following effect: (a) It shall not discharge any other such party from liability unless its terms so provide, but it shall reduce the claims against the others in the amount stipulated by the release, the dismissal or the covenant, or in the amount of the consideration paid for it, whichever is the greater. (b) It shall discharge the party to whom it is given from all liability for any contribution to any other parties."

In *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499, the California Supreme Court identified the following nonexclusive factors courts are to consider in determining if a settlement is in good faith under section 877.6: "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants."

III. DISCUSSION

In *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, the Court of Appeal observed:

"[O]f the hundreds of motions for good faith determination presented for trial court approval each year, the overwhelming majority are unopposed and granted summarily by the trial court. At the time of filing in many cases, the moving party does not know if a contest will develop. If each motion required a full recital by declaration or affidavit setting forth a complete factual response to all of the Tech-Bilt factors, literally thousands of attorney hours would be consumed and inch-thick motions would have to be read and considered by trial courts in an exercise which would waste valuable judicial and legal time and clients' resources. It must also be remembered that Tech-Bilt was decided on a contested basis. We are unaware of any reported decision which has reversed an uncontested good faith determination and we, therefore, conclude that only

when the good faith nature of a settlement is disputed, it is incumbent upon the trial court to consider and weigh the Tech-Bilt factors. That is to say, when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient." (City of Grand Terrace, supra, 192 Cal.App.3d at p. 1261.)

Here, EC submitted a motion which sets forth the ground of good faith and a brief background of the case. No opposition has been filed. Therefore, the Court grants the motion.

V. CONCLUSION

Defendant Envirocheck, Inc.'s application for determination of good faith settlement is GRANTED.

The Court dismisses all pending and future claims against EC by the parties represented by counsel served with this motion (to the extent those claims arise from the facts giving rise to this case), including cross-complaints for equitable indemnity.

EC is ordered to give notice.

DATED: July 21, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

Superior Court of California

County of Los Angeles

Department 730

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JANE DOE,

Plaintiff,

vs.

GOLDRICH & KEST INDUSTRIES, LLC, et al.

Defendants.

Case No.:

25STCV33104

Hearing Date:

July 21, 2026

ORDER SUSTAINING DEMURRER TO THE FIRST AMENDED COMPLAINT

I. BACKGROUND

During Plaintiff Jane Doe's ("Doe") tenancy, Doe's landlords, Defendants Goldrich & Kest Industries, LLC ("GK") and Bunker Hill Apartments, LLC ("BH") allegedly harassed, distressed, and violated the warranty of habitability with Doe. Landlord Defendants's attorney, Defendant Kimball, Tirey & St. John LLP ("KTS") allegedly also harassed and denied Doe her legal rights. Landlord defendants hired Defendant Envirocheck, Inc. ("EC") to test Doe's apartment. EC found no trace of mold, despite Doe alleging otherwise. Doe sues Defendants for thirty-three causes of action.

On March 10, 2026, KTS filed the instant demurrer to all causes of action asserted against KTS. Doe opposed. KTS replied.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10 states¹: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible;

and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.”

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

KTS requests the Court sustain the demurrer as to all causes of action against KTS as the causes of action have insufficient facts to state causes of action, are uncertain and unintelligible, are barred by litigation privilege, and lack a prior court order.

A. First Cause of Action for Negligence / Seventh Cause of Action for Negligent Infliction of Emotional Distress (“NIED”) / Sixteenth Cause of Action for Negligence Supervision

KTS first requests the Court sustain the demurrer as to the cause of action for negligence as KTS owed no duty to Doe. The elements of a negligence cause of action include a duty of care, breach of duty, proximate cause between breach and injury, and damages to a plaintiff. (*Ahern v. Dillenback* (1991) 1 Cal.App.4th 36, 42.)

Doe claims KTS is liable for negligence as it “owed its Client [GK] ethical obligations to have some background and education in mold,” “should have understood ventilation problems, humidity fluctuations, mold, lack of lights, lack of screens, and filth are all health problems[,]” and yet “failed to use common sense and maliciously exposed Plaintiff to visible mold in retaliation because Plaintiff wrote a Civil Rights Memorandum and participated in tenant organizing activities,” eventually attempting to engage in “self-help eviction.” (FAC ¶¶ 773 – 779.)

There are no allegations establishing a duty from KTS to Doe to 1) have knowledge of housing issues; 2) prevent Doe from mold exposure; or 3) to not engage in ‘self-help eviction,’ as Doe does not allege KTS was Doe’s landlord. Landlord’s counsel has no duty to the landlord’s tenants in such circumstances. The Court sustains the demurrer as to the first cause of action.

The Court also sustains the demurrer as to the seventh cause of action for NIED, as NIED is not an independent tort in California. It is an alternative pleading for causes of action for negligence when the plaintiff only suffered emotional distress. (See *Molien v. Kaiser Foundation Hospitals* (1980) 27 Cal.3d 916, 928.) Therefore, if negligence is insufficiently pled, NIED is also insufficiently pled.

Similarly, the Court sustains the demurrer as to the sixteenth cause of action for negligence supervision, as Doe has not alleged KTS’s employees did any actionable ‘harm’ to Doe. Negligent supervision is direct liability for the negligence of an employee. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.) As noted previously, all basis for claims against both KTS and KTS employees are without merit as to negligence claims because there was no duty between KTS/KTS employees to Doe. Therefore, KTS cannot be directly liable via a claim for negligence supervision.

B. Fourth Cause of Action for Nuisance / Twenty-Third Cause of Action for Discrimination of Account of Plaintiff's Mental and Physical Disabilities / Twenty-Fourth Cause of Action for Discrimination Based on Association With a Disabled Family Member / Twenty-Seventh Cause of Action for Invasion of Privacy

The Court sustains the demurrer for nuisance as KTS is ambiguous and unclear, pursuant to section 430.10, subdivision (f). To sustain a demurrer for uncertainty, the complaint must be so vague or ambiguous that the defendant cannot reasonably respond. (*Khoury v. Malys of California, Inc.* (1993) 14 Cal.App.4th 612, 614.)

Doe alleges KTS, along with three other defendants, is liable for nuisance, but does not clarify if this is a cause of action for private or public nuisance. There is no cause of action for just nuisance. Public and private nuisance are separate causes of action with separate elements and bodies of case law. KTS is unable to provide a meaningful response absent information as to what type of nuisance claim Doe is pursuing. Therefore, the Court sustains the FAC as to this cause of action.

The Court similarly sustains the demurrer as to the twenty-third cause of action, as it is unclear on what basis Doe brings her claims. There is no common law cause of action for "Discrimination on account of plaintiff's mental and physical disabilities." Generally, said cause of action is brought under FEHA. However, the FAC does not identify any specific statute, instead generally asserting "Civil rights are protected by the Constitution and federal laws, such as the Civil Rights Act of 1964, the Americans with Disabilities Act of 1990, and the Fair Housing Act. State courts have jurisdiction over Civil Rights lawsuits under 42 U.S.C. § 1983." (FAC ¶ 1288.)

Even assuming Doe intends to move under 42 U.S.C. section 1983, there is no basis for this claim, as said section allows individuals to sue government officials. KTS is not alleged to be a government employee or actor. Therefore, this cause of action is either subject to demur for ambiguity or failure to state a valid cause of action.

The cause of action for "Discrimination Based on Association With a Disabled Family Member" is similarly subject to demurrer as it is under what law or statute KTS brings this cause of action. Doe's FAC only identifies that KTS communicated there was no guest parking for Doe's grandmother at Doe's apartment complex, in a "highly insensitive" and manner lacking empathy. (FAC ¶ 1336.) There are no clear elements or law that are indicated by these actions. KTS cannot meaningfully reply to or defend against claims without information as to what basis these claims derive.

The cause of action for invasion of privacy does not provide sufficient information for KTS to determine the allegations against KTS. The only reference to KTS's action under the twenty-seventh cause of action is "[i]n addition, Defendants repeatedly breached Plaintiff's rights to privacy through email communications while engaging in cyberbullying." (FAC ¶ 1371.) As written, the FAC does not explain how KTS violated Doe's right to privacy by 'cyber-bullying' Doe via e-mail. Absent explanation as to what type of privacy was violated, or how said action violated Doe's privacy, this cause of action is subject to demur for ambiguity.

The Court does not address the merits of the sufficiency of facts alleged as to these causes of action given the ambiguity.

C. Sixth Cause of Action for Intentional Infliction of Emotional Distress ("IIED") / Twenty-Eighth Cause of Action for Violation of California Civil Code section 52.1--Bane Act

KTS first argues Doe's sixth cause of action for IIED is barred by Civil Code section 47, subdivision (b), as all alleged actions relate to communications and acts by KTS in furtherance of 'evicting' Doe. Section 47, subdivision (b) "provides that a 'publication or broadcast' made as part of a 'judicial proceeding' is privileged. This privilege is absolute in nature, applying 'to all publications, irrespective of their maliciousness.' [Citation.] 'The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action.' [Citation.] The privilege 'is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.' [Citation.]" (*Winslett v. 1811 27th Avenue, LLC* (2018) 26 Cal.App.5th 239, 253 [quoting *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1239-1240].)

In Winslet, the Court of Appeal set forth the scope of the litigation privilege as follows:

Traditionally, the privilege has been given 'a broad interpretation' in order to achieve its "principal purpose" to afford litigants and witnesses "the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions." [Citation.] "[C]ourts have emphasized the importance of the litigation privilege's absolute protection of access to the courts, while recognizing that this absolute protection has its costs," since, inevitably, its invocation will sometimes shield "the shady practitioner" along with the honest ones.' [Citation.] "[I]n immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of judgments and avoiding an unending roundelay of litigation, an evil far worse than an occasional unfair result." [Citation.]

(Winslett, supra, 26 Cal.App.5th at p. 253 [internal quotes and citations omitted].) The litigation privilege applies to all tort claims except malicious prosecution. (Silberg v. Anderson (1990) 50 Cal.3d 205, 215-216.)

The privilege protects only publications and communication; non communicative conduct is not privileged. (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058.) "The key in determining whether the privilege applies is whether the injury allegedly resulted from an act that was communicative in its essential nature." (Ibid.) For conduct to be communicative, there must be a statement made, a representation offered or some assertive conduct that is a "speech-substitute." (Booker v. Rountree (2007) 155 Cal.App.4th 1366, 1373.)

Doe's IIED claim alleges KTS's extreme and outrageous behavior consisted of attempting to evict Doe, failing to fix a nuisance, failing to respond to Doe's emails, "lecturing [Doe] on her lack of professionalism", failing to maintain Doe's unit in safe conditions, refusing to allow Doe to install screens, causing Doe to cry, forbidding Doe's grandmother from visiting Doe, canceling free guest parking, discriminating against Doe, humiliating Doe in front of online groups, belittling Doe's health concerns, and generally harassing Doe. (FAC ¶¶ 914, 919, 924, 930-931)

While unlawful detainer actions, eviction notices, and statements made by a landlord's agent made in "serious contemplation of litigation," are considered to be litigation for purposes of section 47, subdivision (b), the alleged extreme and outrageous behavior is not limited to publications and communications. (1100 Park Lane Associates v. Feldman (2008) 160 Cal.App.4th 1467, 1486-1491.) Doe also claims KTS failed to maintain Doe's unit and refusing to allow Doe to install screens or to have her grandmother visit.

However, the allegations that remain are not extreme and outrageous for the purposes of an IIED claim. A cause of action for intentional infliction of emotional distress requires: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 [citations and quotations omitted].) A defendant's conduct is "outrageous" when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.) The defendant must either intend his or her conduct to inflict injury or have engaged in it with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Ibid.)

Even assuming Doe had properly pled KTS had any duty to fix Doe's apartment or approve Doe's requests, as a resident, none of these denials are so beyond the bounds of civilized society so as to be deemed extreme or outrageous. As there are insufficient allegations of extreme and outrageous behavior not barred by the litigation privilege, the Court sustains demurrer as to this cause of action.

The cause of action for violation of the Bane Act is similarly subject to the litigation privilege. California Civil Code section 52.1 prohibits persons from "interfer[ing] by threats, intimidation, or coercion, or attempting to interfere by threats, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals . . . of the rights secured by the . . . laws of this state." Any communications made by KTS are protected from civil prosecution, pursuant to section 47,

subdivision (b). Other threatening actions, as explained elsewhere, are either not alleged to have been done by KTS within the greater context of the complaint or impose duties on KTS that KTS had no duty to complete. Therefore, the Court sustains the demurrer to this cause of action.

D. Thirteenth Cause of Action for Fraud

KTS requests the Court sustain the demurrer as to the cause of action for fraud as Doe has failed to plead the causes of action with sufficient specificity. The elements of a claim for fraud are “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974, internal quotation marks omitted.)

California’s fact pleading standard requires the plaintiff to plead with sufficient specificity to “furnish the defendant with certain definite charges which can be intelligently met.” (Committee on Children’s Television, Inc. v. General Foods Corp. (1985) 35 Cal.3d 197, 216.) The specificity requirement is relaxed when, from the nature of the allegations, it appears “the defendant must necessarily possess full information,” or “when the facts lie more in the knowledge of the opposing parties.” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384-85, internal quotations omitted; Tarmann v. State Farm Mutual Auto-Mobile Ins. Co. (1992) 2 Cal.App.4th 153, 158.) Details are to be the subject of discovery. (See Alfaro, supra, at 1385.)

Doe’s thirteenth cause of action alleges Defendants, including KTS, defrauded Doe by “making [false] representations of material fact that there was no dampness or mold in her apartment and that the mold spore levels were safe, and in fact, safer than the mold levels outdoors” (FAC ¶ 1009.) However, the complaint does not make clear which defendant made what representation; these facts are insufficient to give KTS certain definitive charges that can be intelligently met. Therefore, the Court sustains demurrer as to the thirteenth cause of action.

E. Fifteenth Cause of Action for Fraud by Omission / Twentieth Cause of Action for Promissory Estoppel

KTS argues Doe’s fifteenth cause of action for fraud by omission is similarly barred, as KTS had no right to object or otherwise apply expenses. “A duty to speak [to avoid fraud] may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent.” (SCC Acquisitions, Inc. V. Central Pacific Bank (2012) 207 Cal.App.4th 859, 860.)

The fifteenth cause of action alleges Defendants, including KTS, defrauded Doe by omissions by “failing to object to her Estimate for her “Repair and Deduct” expenses and thereafter refusing to apply these expenses towards her rent.” (FAC ¶ 1042.) Doe alleged emailed a KTS attorney with her estimate for repair and deduct prior to making alterations; Defendants allegedly remained silent until expenses had already been incurred, fully award by not objecting they would be unjustly enriched by Doe improving their property under the impression she could deduct her expenses. (FAC ¶¶ 1043 – 1045.)

Doe has not pled on what basis KTS, as a non-owner or landlord, had a duty to speak to correct Doe’s assumption. There is no listed statutory basis, no alleged voluntary relationship stemming from contract, no alleged relationship between Doe and KTS imposing such a duty, or indication of other conduct by KTS that would make KTS’s silence wrongful. As Doe has not pled a duty for KTS to have corrected Doe’s misunderstanding, the Court sustains the demurrer to this cause of action.

Similarly, the Court sustains the cause of action for promissory estoppel, which relies upon Defendants allegedly leading Doe to believe her ‘Repair and Deduct’ costs would be applied to her rent by failing to provide a timely reply. Promissory estoppel requires a showing of a “promise, which the promisor should reasonably expect to induce action or forbearance of a definite and substantial character on the part of the promisee, [that] induces such action or forbearance, and injustice can only be avoided by enforcing the promise. (C & K Eng’g Contractors v. Amber Steel Co. (1978) 23 Cal.3d 1, 6.)

Doe's FAC does not establish any promise (or duty) from KTS to either timely respond to Doe's repair and deduct cost reimbursement request or to otherwise honor the request. Therefore, the Court sustains the demurrer as to this cause of action.

F. Seventeenth Cause of Action for Defamation

The Court sustains the demurrer as to the seventeenth cause of action for defamation due to the insufficiently pled facts. Defamation requires a showing of "(1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage." (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1259.) A statement is defamatory when it tends "directly to injure [a person] in respect to [that person's] office, profession, trade or business, either by imputing to [the person] general disqualification in those respects which the office or other occupation peculiarly requires, or by imputing something with reference to [the person's] office, profession, trade, or business that has a natural tendency to lessen its profits." " " (*Issa v. Applegate* (2019) 31 Cal.App.5th 689, 702, internal citation omitted.) Defamation by implication requires demonstration of a reasonable interpretation of the alleged implications that "convey defamatory facts, not opinions," that are not substantially true. (*Id.* at 707.)

The FAC alleges Defendants, including, KTS, made defamatory statements about Doe. (FAC ¶ 1071.) The statements, made to all staff at Doe's apartment complex and 'other online participants', were "that there never was any mold or humidity problems," despite Doe's claims to the contrary. (FAC ¶¶ 1077, 1078.) These claims allegedly made third parties believe Doe "was evil, a liar, and a cheat," despite never stating as such. (FAC ¶ 1080.) The only specific instance in the FAC of KTS making any statement regarding mold is an e-mail from KTS attorney to Doe, in which the attorney stated no previous issues were found, but that if Doe provided lab results, GK would conduct an investigation. (FAC ¶ 666.)

The FAC does not allege any facts demonstrating KTS ever allegedly made a statement a reasonable person could interpret as 1) vehemently stating there were no mold problems or 2) that Doe was evil, a liar, or a cheat. The KTS email notes no mold was found previously, but that GK was open to investigation should KTS bring new information to their attention. Nothing within the email characterizes Doe in a negative light.

As Doe has failed to plead any facts in support of the assertion KTS defamed Doe, the Court sustains the demurrer as to this cause of action.

G. Eighteenth Cause of Action for Cyberbullying under Penal Code section 653.2

The Court sustains the demurrer as to the eighteenth cause of action, brought under Penal Code section 653.2, as the section does not give an individual the right to bring a civil action against another person. Section 653.2, subsection (a), makes it a misdemeanor for a person, with intent to place another person in reasonable fear for his safety, to electronically distribute, publish, e-mail, hyperlink, or make available for downloading, personal identifying information which would be likely to incite or produce unwanted physical contact, injury, or harassment, by a third party. (Pen. Code, § 653.2.)

Whether a party has a right to sue under a statute depends on whether the Legislature has manifested an intent to create such a private cause of action under the statute, and such legislative intent, if any, is revealed through the language of the statute and its legislative history. (*Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596.)

There is no evidence in the legislative history of Penal Code section 653.2 that the legislature intended such private right of action. Doe does not provide any evidence of such intent. Therefore, the Court sustains the demurrer.

H. Twenty-Second Cause of Action for Attorney Malpractice

KTS requests the Court sustain the demurrer as to this cause of action as there was no attorney-client relationship between KTS and Doe. An attorney only has a duty not to commit malpractice to parties to which the attorney has duties—a client or a client's third-party beneficiary. (Budd v. Nixen (1971) 6 Cal.3d 195, 200.)

Doe clearly does not allege KTS was acting as Doe's attorney; instead, Doe argues Doe "was a third party who was a direct beneficiary of the attorney's services or was under the impression that that was the case due to her mental disabilities, which caused confusion." (FAC ¶ 1150.) However, the FAC makes clear KTS was acting as GK's attorney. (FAC ¶ 47.) The FAC also alleges Doe routinely told Defendants that Doe "needed to get an attorney", not needed to get her own attorney, indicating her belief she was not represented by KTS in any capacity. (FAC ¶ 1109.) There are no allegations of KTS ever alluding to being Doe's attorney in any manner. Therefore, the only potentially pled basis for such a claim is Doe as a third-party beneficiary.

Typically, third-party beneficiaries are limited in scope. Determination of "whether in a specific case the defendant will be held liable to a third person not in privity is a matter of policy and involves the balancing of various factors, among which are the extent to which the transaction was intended to affect the plaintiff, the foreseeability of harm to him, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury, and the policy of preventing future harm." (Lucas v. Hamm (1961) 56 Cal.2d 583, 588.) This has been applied to require an attorney who drafts a will owing a duty to an intended beneficiary to achieve the testator's purpose. (Id.)

A tenant of a client landlord is clearly not an intended beneficiary of any arrangement between an attorney and said client. Any advice given to a landlord client is not intended to help a tenant, especially not in a potential eviction scenario. If the Court were to allow counsel to be liable for the actions of an opposing party, based upon counsel's arm-length dealings with said party, it would be impossible to act as a diligent representative of one's client. (Goodman v. Kennedy (1976) 18 Cal. 3d 335, 381-382.) Therefore, the Court finds, as pled, there is no indication of facts sufficient to warrant a cause of action for attorney malpractice. The Court sustains the demurrer as to this cause of action.

I. Twenty-Ninth Causes of Action for Conspiracy

This cause of action is subject to demur, as Doe has not sufficiently pled the elements for civil conspiracy. "To support a conspiracy claim, a plaintiff must allege the following elements: '(1) the formation and operation of the conspiracy, (2) wrongful conduct in furtherance of the conspiracy, and (3) damages arising from the wrongful conduct.' " (AREI II Cases (2013) 216 Cal.App.4th 1004, 1022.)

Doe generally pleads Defendants conspired to defraud Doe with a fraudulent mold test by "committ[ing] one or more overt acts in furtherance of that plan." (FAC ¶¶ 1389-1391.) However, Doe does not actually plead facts to support the formation and operation of the conspiracy, or specific wrongful conduct. At most, Doe alleges landlord defendants hired EC knowing EC tended to favor landlords when conducting mold tests. This is insufficient to establish formation of a conspiracy or wrongful conduct in furtherance of said conspiracy. Therefore, the Court sustains the demurrer as to this cause of action.

The Court notes Doe does not need to obtain leave of court to plead civil conspiracy unless the conspiracy arises from an attempt to contest or compromise a claim or dispute and is based upon the attorney's representation of the client. The Court will not sustain the demurrer as to this argument because KTS has not outlined how the allegedly fraudulent mold test arises from an attempt to contest or compromise a claim or dispute.

J. Thirty-Third Cause of Action for Conspiracy to Commit Conspiracy

The Court sustains the demurrer as to this cause of action as there is no allegation of actual damages to Doe stemming from this alleged conspiracy. In order to present a cause of action for conspiracy, damages must arise from the wrongful conduct. (See AREI II Cases at p. 1022.)

The FAC alleges Defendant sent Joshua Frank ("Frank") to small claims court to commit perjury by stating he told Doe no alterations were allowed when Doe signed her lease agreement. (FAC ¶ 1408.) There are no allegations Frank ever actually testified—the text identifies it only as "attempted perjury." (FAC ¶ 1410.) The cause of action does not include any claim for damages. Therefore, Doe has failed to present sufficient facts to support a cause of action for conspiracy to commit perjury. The Court sustains the demurrer as to this cause of action.

K. Leave to Amend

The burden is on a plaintiff to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) Doe does not request leave to amend, instead merely asserting she has already prepared a SAC. Doe does not provide any information as to how the SAC will solve the issues, as outlined above. Accordingly, Doe has not shown sufficient basis for the Court to find Doe is capable of amending the complaint with respect to KTS to present any viable cause of action. Therefore, the Court denies leave to amend.

Doe's allegations that other potential plaintiffs would like to join her action are irrelevant for the Court's evaluation of her claims. These other plaintiffs may file their own actions against KTS for alleged wrongs.

IV. CONCLUSION

Defendant KTS's demurrer to the FAC is SUSTAINED, without leave to amend.

Moving Party is ordered to give notice.

DATED: July 21, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject

motion without leave.